

Line 3

Case Name: *Raymond Tesconi v. Dark Run Ventures, Inc., et al.*

Case No.: 24CV435406

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Ashish Tripathi (“Defendant” or “Tripathi”) moves under Code of Civil Procedure Sections 405.30 and 405.32 to expunge the Notice of Pendency of Action (Lis Pendens) recorded by Plaintiff Raymond Tesconi (“Plaintiff”) against the real property located at 4298 Othello Drive, Fremont, CA 94555, Alameda County Assessor’s Parcel Number 543-0413-007-00 (the “Property”) Notice of Motion (the “Motion”) at 1:27-2:4 (filed: Feb. 13, 2026). The Motion is made on the grounds that: (1) Plaintiff’s Complaint fails to state a real property claim against Defendant, and (2) Plaintiff cannot establish the probable validity of any real property claim against Defendant, who is a bona fide purchaser for value. *Id.* at 2:6-9.

The Motion came on for hearing on August 21, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Fact Allegations & Procedural History

On March 7, 2018, Plaintiff Raymond Tesconi obtained a loan from Thurman Investments, Inc., executing a \$350,000.00 promissory note, secured by a deed of trust on real property located at 4298 Othello Drive, Fremont, California. The loan was secured by a Deed of Trust dated March 2, 2018, recorded on March 7, 2018, as Document Number 2018047045 in the Official Records of Alameda County, California.

The note bore an interest rate of 11.603% per annum, with “Interest Only Payments of \$3,384.20 - paid in monthly installments from May 1, 2018, up until April 30, 2023” (Compl. ¶ 19) and a balloon payment of the entire principal of \$350,000.00 due and payable immediately at the maturity date of April 30, 2023. Interests in the loan were transferred to MERS Fund I and subsequently to Dark Run Ventures, Inc., entities controlled by Defendant William Robinson Stuart.

In mid to late 2019, Raymond Tesconi suffered a stroke. In the first quarter of 2020, Raymond Tesconi was diagnosed with Stage 4 Colon Cancer and was forced to undergo chemotherapy. William Robinson Stuart contacted Tesconi in April 2020, introduced himself as the managing member of MERS Fund I, and asked Tesconi to come to his office to sign documents; Stuart never explained the terms of these documents to Tesconi; Tesconi informed Stuart of his illnesses and current medical treatment that interfered with his faculties and ability to think clearly.

“Through the duration of the promissory note, Plaintiff states based on information and belief that he never missed a payment, and that he materially complied with each and every provision under the Second Deed of Trust.” (Compl. ¶ 22.) As the loan approached maturity, Tesconi located several ready, willing lenders prepared to loan money to pay off the junior loan, but that on several occasions, escrow would open and Stuart would find every opportunity to stonewall and thwart Tesconi’s efforts to complete the loan process.

In April 2022, Tesconi obtained a payoff quote from Dark Run Ventures, Inc. Stuart faxed over a document stating that Tesconi’s payoff was in the amount of \$442,801.28. Tesconi alleges that “defendants charged over \$80,109.83 in illegal interest payments at the unconscionable usurious rate of 20.5%” (Compl. ¶ 37.) By September 12, 2022, the payoff amount climbed to \$461,598.03.

Dark Run Ventures, Inc. (“DRV”) recorded a Notice of Default against the subject property on or about January 23, 2023—roughly three months before the maturity of the loan. A Notice of Trustee Sale was recorded on or about June 8, 2023. Tescooni alerted defendants that he was approved for a \$500,000 reverse mortgage loan—which would have easily satisfied the outstanding balance that defendants falsely and maliciously claimed that Tesconi owed; Tesconi requested a 60-day forbearance and asked defendants not to proceed with the non-judicial foreclosure trustee auction until the loan application process was completed.

“Tesconi was also preapproved for an emergency loan in the amount of \$50,000; Plaintiff tendered \$50,000 from those proceeds in good faith in order for the impending April 2, 2024, sale to be stopped *ibid*” (Compl. ¶ 56), but that “Defendants maliciously and in bad faith refused to consider the good faith offer; and in the absence of such bad faith, Plaintiff had the present ability to, and would have, cured the default and halted the sale” (*id.* ¶ 57).

The foreclosure sale occurred on April 2, 2024. Defendant Tripathi attended the non-judicial foreclosure auction and was the successful bidder. Tripathi purchased the property for the total sum of \$1,220,100.00, paid in full via cashier’s checks. The deed states the amount of the unpaid debt together with costs was \$604,715.15.

Tesconi filed this action (Case No. 24CV435406) on April 16, 2024—fourteen days after the April 2, 2024 trustee’s sale. Tesconi’s complaint here asserts ten causes of action, including wrongful foreclosure, quiet title, financial elder abuse, and declaratory relief.

The lis pendens was recorded May 10, 2024, at 1:13 PM in the Official Records of Alameda County. The trustee’s deed was dated May 22, 2024, and was not recorded until May 24, 2024, at 2:52 PM in the Official Records of Alameda County (Document No. 2024065120). Thus the lis pendens was recorded 14 days before the trustee’s deed was recorded.

The trustee’s deed states that a copy of the affidavit or declaration under Code of Civil Procedure Section 2015.5 delivered to the trustee by Tripathi as high bidder is attached as Exhibit A and incorporated therein; that affidavit is required to be attached

and recorded pursuant to Civil Code Section 2924m(d). However, Tripathi did *not* attach a copy of the Section 2924m affidavit to his moving papers here. Civil Code section 2924m(c)(1) requires that a prospective owner-occupant must submit the required affidavit to the trustee at the trustee's sale or by 5 p.m. on the next business day following the trustee's sale.

Here, the trustee's sale occurred April 2, 2024; the latest the affidavit should have been accepted under section 2924m(c)(1) was April 3, 2024, before 5 p.m. Tesconi asserts that DRV and Stuart allowed Tripathi to submit the section 2924m affidavit 43 days after the sale and that the affidavit was executed May 15, 2024—43 days after the sale, in violation of the statute's next-business-day deadline—and was deliberately concealed from the Court to create a false appearance of innocence.

A related unlawful detainer action was filed by Tripathi against Tesconi in Alameda Superior Court, case number 24CV078303. The Alameda Superior Court on December 12, 2024, granted Tripathi's unopposed motion for summary judgment, finding that Defendant Raymond Tesconi has not opposed this motion and has therefore failed to raise triable issues of material fact as to the unlawful detainer action. Judgment was entered on December 16, 2024 in favor of Plaintiff and against Defendant. Reply at 7:18-20.

The Court of Appeal, First Appellate District, Division Three, filed an unpublished opinion on July 29, 2026, in case number A172456 (Alameda County Super. Ct. No. 24CV078303), affirming the judgment. The Court of Appeal affirmed "the trial court's determination that Tripathi is a bona fide purchaser of the subject property entitled to the conclusive presumption of Civil Code section 2924, subdivision (c)" Supp. Req. for Jud. Notice at 2:26-28 & Ex. 5 at pp. 11-12. The appellate court found that Tripathi "purchased the property for \$1,220,100.00 and, at the time of the sale, had no knowledge of any dispute regarding the foreclosure proceedings or the underlying loan" Supp. Req. for Jud. Notice, Ex. 5 at pp. 11-12.

On the timing issue, the Court of Appeal held that "the undisputed evidence, however, establishes that Tripathi submitted the successful bid on April 2, 2024, before either the May 10, 2024 recording of the lis pendens or his June 7, 2024, addition as a defendant in the wrongful foreclosure action" Supp. Req. for Jud. Notice, Ex. 5 at pp. 11-12. And that "at the time Tesconi recorded his lis pendens, the trustee's sale was complete and the statute provides no manner by which to abort the sale aside from a defect in the foreclosure process. *Id.*, Ex. 5 at p. 13.

Here, in this case (No. 24CV435406), Tripathi filed his Motion to Expunge Lis Pendens on February 12, 2026, seeking expungement on two grounds: that Tesconi's complaint fails to state a real property claim against Tripathi, and that Tesconi cannot establish the probable validity of any real property claim against Tripathi because Tripathi is a bona fide purchaser for value. Tesconi opposes the motion and requests mandatory attorney fees of \$11,040.00 under Code of Civil Procedure section 405.38 if Tesconi prevails on this Motion.